

51. As a result of this suppression and obstruction, Plaintiff was:

- Denied a fair and impartial hearing;
- Deprived of access to material exculpatory evidence;
- Subjected to ongoing harm through the concealment of facts that would have supported his defense.

52. These acts, both individually and collectively, constitute willful violations of Plaintiff's rights under the Due Process Clause of the Fourteenth Amendment.

Count III – Malicious Prosecution

(Against Jennifer Chau, Judge Jason Sanders, and Judge Mark Finlay in their individual capacities)

53. The offense for which Plaintiff was arrested—expired vehicle registration—is a non-criminal, Class C administrative violation under Texas law. It does not authorize custodial arrest or punishment absent specific aggravating circumstances, which were not present.

54. Despite the non-criminal nature of the offense, Plaintiff was:

- Taken into custody without a warrant;
- Detained for more than eighteen (18) hours;
- Processed without formal criminal charge;
- Adjudicated by Judge Jason Sanders with a “time served” disposition despite no plea, no finding of guilt, and no legal authority to impose punishment.

55. These actions were undertaken knowingly, without probable cause, and in direct violation of Texas law. They reflect retaliatory intent and a conscious disregard for Plaintiff's rights.
56. Following Plaintiff's release, County Attorney Jennifer Chau continued to support and legitimize the false arrest by:
- Misrepresenting the legality of the stop and arrest at the tow hearing;
 - Blocking access to exculpatory evidence;
 - Permitting and relying on testimony from a towing representative with no firsthand knowledge of the vehicle's location.
57. Judge Mark Finlay ratified this conduct by allowing the hearing to proceed based on unsupported testimony, refusing to compel evidence or witnesses, sustaining objections that shielded misconduct, and ultimately issuing a ruling that affirmed and extended the harm caused by the unlawful arrest.
58. The combined actions of the Defendants created a false legal record, disguised official misconduct as lawful process, and caused ongoing constitutional, economic, and reputational harm to Plaintiff and his household.
59. Plaintiff continues to suffer from a fabricated record of conviction imposed without a plea or adjudication, under false pretenses, and supported by deliberate concealment of exonerating facts by County officials.

60. These actions constitute malicious prosecution under 42 U.S.C. § 1983 and were conducted in retaliation for Plaintiff asserting his rights and attempting to challenge the unlawful seizure of his liberty and property. The concealment and coordination among officials significantly exacerbated the harm.

Count IV – Civil Conspiracy to Violate Constitutional Rights

(Against Jennifer Chau, Judge Jason Sanders, Judge Mark Finlay, Raymond Gonzales, Michaela Riley, and other named Defendants in their individual capacities)

61. At all relevant times, Defendants were acting under color of state law and within the scope of their official duties as employees or agents of Matagorda County.

62. Defendants knowingly and intentionally entered into an agreement, express or implied, to deprive Plaintiff of his constitutional rights, including:

- Freedom from unlawful arrest and detention;
- Freedom from unreasonable search and seizure;
- The right to due process of law;
- The right to access exculpatory evidence and a fair hearing.

63. Overt acts taken in furtherance of this conspiracy included:

- Conducting a custodial arrest for a non-custodial administrative offense;
- Concealing bodycam and dashcam footage essential to Plaintiff's defense;
- Participating in a biased and procedurally defective tow hearing;
- Withholding material records and obstructing Plaintiff's access to information;

- Permitting false or unreliable testimony to be admitted without challenge;
- Suppressing Plaintiff's attempts to challenge government misconduct.

64. Each Defendant knowingly played a role in initiating, enabling, facilitating, or concealing the unlawful acts. Their failure to intervene transformed negligent procedures into deliberate violations of Plaintiff's civil rights.

65. As a direct result of this conspiracy, Plaintiff suffered:

- Deprivation of liberty and property;
- Emotional trauma;
- Reputational harm;
- Financial losses.

66. The nature and coordination of these actions support liability under 42 U.S.C. § 1985(3), and mirror the type of civil conspiracy prohibited under 18 U.S.C. § 241, reinforcing the knowing and willful deprivation of constitutional rights.

67. Plaintiff seeks compensatory and punitive damages against each Defendant, as well as declaratory relief and such other remedies as the Court deems just and proper.

Count V – Monell Liability for Unconstitutional Policies and Practices

(Against Matagorda County)

68. Defendant Matagorda County is liable under 42 U.S.C. § 1983 because it maintained official policies, customs, or permitted de facto practices by its

employees that were the moving force behind the constitutional violations suffered by Plaintiff.

69. These policies and customs included:

- Permitting custodial arrests for non-jailable administrative offenses in violation of Texas law;
- Failing to ensure Justices of the Peace adhered to constitutional due process standards;
- Tolerating the withholding of exculpatory evidence;
- Allowing administrative obstructions to public records access;
- Failing to train or supervise law enforcement, court staff, and legal officers regarding constitutional obligations.

70. The County's failure to implement proper policies and training reflects deliberate indifference to the rights of individuals who interact with County officials.

71. Matagorda County knew or should have known that its inadequate supervision and training would lead to constitutional violations, including those experienced by Plaintiff.

72. As a direct and foreseeable result of these systemic failures, Plaintiff was subjected to unlawful arrest, denial of due process, malicious prosecution, and the concealment of exculpatory evidence.

73. Accordingly, Matagorda County is liable under *Monell v. Department of Social Services*, 436 U.S. 658 (1978), for the actions and omissions of its officials acting pursuant to custom, policy, or longstanding practice.

V. DAMAGES

74. As a direct and proximate result of Defendants' unlawful actions and omissions, Plaintiff has suffered the following damages:

- a. Loss of liberty through eighteen (18) hours of unconstitutional detention;
- b. Emotional distress and mental anguish resulting from unlawful arrest, confinement, and abuse of judicial process;
- c. Financial harm, including vehicle tow and retrieval fees, lost income, and legal-related costs;
- d. Reputational damage from being falsely processed, adjudicated, and publicly stigmatized;
- e. Legal disability resulting from a false court record, including impaired standing and risk of future adverse use;
- f. The harm Plaintiff endured is consistent with federal precedent. In ***Trezevant v. City of Tampa***, 741 F.2d 336 (11th Cir. 1984), a jury awarded \$25,000 in compensatory damages for an unlawful detention lasting just twenty-three (23) minutes—equating to \$65,217 per hour in 1984. Adjusted for inflation to May

2023, that figure equals approximately **\$182,944.59 per hour**. Applied to Plaintiff's 18-hour detention, the comparable compensable value exceeds **\$3.2 million**;

g. Other consequential and compensable damages to be proven at trial.

VI. PRAYER FOR RELIEF

WHEREFORE, PREMISES CONSIDERED, Plaintiff respectfully requests that this Court:

1. Enter judgment in favor of Plaintiff and against all named Defendants, jointly and severally, for violations of his constitutional rights under 42 U.S.C. §§ 1983 and 1985(3);
2. Declare that the actions of Defendants violated Plaintiff's clearly established rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments;
3. Award compensatory damages in an amount to be determined at trial, including:
 - Damages supported by federal precedent, including **Trezevant v. City of Tampa**, 741 F.2d 336 (11th Cir. 1984), which supports a compensatory value in excess of \$3.2 million for Plaintiff's 18-hour unlawful detention;
4. Award punitive damages against individual Defendants for willful misconduct, deliberate indifference, and reckless disregard of Plaintiff's rights;

5. Award injunctive relief, including:

- Removal or sealing of any false or unlawful court records relating to Plaintiff's arrest and adjudication;
- Any appropriate orders to ensure non-repetition of the practices challenged herein;

6. Award reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988, should counsel be retained;

7. Grant such other and further legal or equitable relief as the Court deems just and proper under the circumstances.

VII. IMMUNITY DEFENSES NOT APPLICABLE

Plaintiff alleges that the acts and omissions of Defendants fall outside the scope of judicial, prosecutorial, or qualified immunity. The conduct at issue:

- Was performed in an administrative, investigative, or non-judicial capacity;
- Occurred in clear absence of jurisdiction or lawful authority;
- Violated clearly established constitutional rights;
- Was performed willfully or with deliberate indifference;
- Is not entitled to immunity under any applicable doctrine or precedent.

Accordingly, Defendants are not immune from liability under 42 U.S.C. §§ 1983 or 1985(3).

VIII. TIMELINESS AND TOLLING OF CLAIMS

Although the events giving rise to this Complaint occurred in May and June 2023, Plaintiff did not discover the constitutional basis of the violations until **April 20, 2025**, after researching applicable law and uncovering evidence that had been concealed.

Plaintiff submitted Notices of Claim on April 25, May 20, and May 23, 2025, to Matagorda County. No response was received.

Therefore, pursuant to the **discovery rule**, **doctrine of fraudulent concealment**, and principles of **equitable tolling**, this Complaint is timely filed.

IX. SUPPORTING EVIDENCE AND DOCUMENTATION

Plaintiff reserves the right to submit or attach the following materials at the appropriate procedural stage:

Notices of Claim submitted to Matagorda County;

Public records requests and responses;

Jail intake and release records;

Tow receipt or impound documentation;

Bodycam/dashcam request logs and denials;

Hearing records;

Correspondence with County departments;

Photographic or video evidence of the arrest site;

Timeline of Plaintiff's efforts to secure records;

Legal precedent references, including **Trezevant v. City of Tampa**, 741 F.2d 336 (11th Cir. 1984).

X. JURY DEMAND

Plaintiff respectfully demands a trial by jury on all issues so triable, pursuant to Federal Rule of Civil Procedure 38(b).

XI. VERIFICATION

I, Donald L. Thompson Jr., declare under penalty of perjury under the laws of the United States that the foregoing is true and correct to the best of my knowledge, information, and belief.

Executed on: July 2, 2025

Markham, Texas

/s/ Donald Lynn Thompson Jr.
DONALD LYNN THOMPSON JR.
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